

22CV00417 Cody Parker vs The Clary Group LLC et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-06-29

Motion: Hearing re Final Approval of Class Action Settlement

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Tentative Ruling: Cody Parker vs The Clary Group LLC et al

Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 06/29/2026 - 10:00

Nature of Proceedings

Hearing re Final Approval of Class Action Settlement

Tentative Ruling

Cody Parker v. The Clary Group, L.L.C., et al.

Case No. 22CV00417

Hearing Date: June 29, 2026

HEARING: Final Approval Of Class Action Settlement

ATTORNEYS: For Plaintiff Cody Parker: Jonathan Melmed, Kyle D. Smith, Melmed Law Group P.C.

For Defendant The Clary Group, L.L.C.: Douglas J. Farmer, Allison J. Fernandez, Ogletree, Deakins, Nash, Smoak & Stewart, P.C.

For Defendant JBS Energy Solutions California LLC: David D. Cardone, Bradley A. Lebow, Adam J. Yarbrough, Dunn DeSantis Walt & Kendrick

TENTATIVE RULING:

For the reasons stated herein, appearances at the final approval hearing are not required.

Background:

On October 28, 2022, plaintiff Cody Parker filed his operative second amended complaint (the SAC) against defendants The Clary Group, L.L.C. (Clary Group), and JBS Energy Solutions California LLC (JBS) (collectively, defendants), alleging ten causes of action: (1) failure to provide rest periods and pay missed rest period premiums; (2) failure to provide meal periods and pay missed meal period premiums; (3) failure to pay all wages earned and unpaid at separation; (4) failure to indemnify all necessary business expenditures; (5) failure to furnish accurate itemized wage statements; (6) violations of California's Unfair Competition Law; (7) violations of Labor Code section 970; (8) wrongful termination; (9) whistleblower retaliation; and (10) penalties pursuant to Labor Code section 2698 et seq. (the Private Attorneys General Act of 2004 or PAGA). As alleged in the SAC:

Plaintiff brings this action on behalf of himself and a class of individuals who are or were employed by defendants as non-exempt employees from four years prior to the filing of the action. (SAC, ¶¶ 2-4 & 14.) Plaintiff also alleges a claim under PAGA on behalf of aggrieved individuals who are or were employed by defendants from February 1, 2021, to the present. (Id. at ¶¶ 5-7 & 16.)

Clary Group is a labor contracting company that placed plaintiff to work running an excavator and other construction equipment at JBS. (SAC, ¶¶ 17, 25, 27.) Though Clary Group is listed on plaintiff's paystubs, plaintiff was employed by both Clary Group and by JBS. (Id. at ¶¶ 18, 19.) During the time periods alleged in the complaint, defendants failed to provide rest and meal periods, to pay wages earned and unpaid at separation, to indemnify employees for necessary business expenditures, to furnish itemized wage statements, and violated Business and Professions Code section 17200 et seq. (Id. at ¶ 4.)

On November 29, 2022, JBS filed an answer to the SAC, generally denying its allegations and asserting twenty-nine affirmative defenses, and a cross-complaint for indemnity and contribution against Clary Group.

On March 6, 2023, Clary Group filed its answer to the SAC generally denying its allegations and asserting thirty-eight affirmative defenses.

On March 11, 2024, after a hearing, the court granted plaintiff's motion for preliminary approval of a class action settlement (the Settlement), preliminarily approving a non-reversionary gross settlement amount of \$177,500 (the gross settlement amount or GSA) to settle and release all claims asserted by plaintiff on behalf of a class of individuals employed by defendants as non-exempt employees from February 1, 2018, through October 18, 2023, and as to claims brought under PAGA, those individuals who were employed by defendants from February 1, 2021, through October 18, 2023. The court appointed ILYM Group, Inc. (ILYM) as the settlement administrator, and approved the notice to be provided and distributed to the class members.

The court set a hearing for final approval of the class action settlement on August 5, 2024, which was continued to October 7, 2024, pursuant to a stipulation of the parties.

On September 13, 2024, plaintiff filed an unopposed motion (the final approval motion) for an order: certifying the settlement class as defined in the Settlement; approving plaintiff (Cody Parker) as class representative; appointing Jonathan Melmed (Melmed) and Kyle D. Smith (Smith) of Melmed Law Group P.C. (the Melmed Group) as class counsel; finding that the notice of the Settlement was properly provided to the class members in accordance with the court's preliminary approval order; approving the Settlement as fair, adequate, and reasonable, based upon its terms and including the payment by defendants of the GSA plus the employer's portion of applicable payroll taxes; and approving the allocation for attorneys' fees of one-third of the gross settlement amount (\$59,166.67), plus necessary litigation costs of \$7,164.52.

On October 7, the court entered a minute order (the October Order) granting the final approval motion, in part, and continuing that motion as to plaintiff's request for an award of attorney's fees and costs to December 16, 2024. Further, the court ordered plaintiff to, on or before December 2, 2024, file and serve a supplemental brief addressing the reasonableness of the attorney's fees sought by plaintiff in light of the issues, questions, and concerns further discussed in the October Order.

On December 2, plaintiff filed a supplemental declaration of Smith.

On December 16, after a hearing, the court entered a minute order (the December Order), granting plaintiff's request for an award of attorney's fees in the amount of \$59,166.67, and costs in the amount of \$7,164.52. Pursuant to the December Order, the court calendared a final approval hearing for October 6, 2025.

On September 12, 2025, plaintiff filed a declaration of Nick Castro, who is the Case Manager for ILYM, which states, among other things, that the total amount received by ILYM pursuant to the Settlement is \$180,791.88, which includes the gross settlement amount of \$177,500. (Castro Decl., ¶¶ 1-3.) That declaration included a breakdown of the payments to be made and completed from the amount received by ILYM. (Castro Decl., ¶¶ 3-8 & 10-11.)

Information appearing in the Castro declaration also showed that payments for attorney fees, litigation expenses, administration expenses to ILYM, the Labor & Workforce Development Agency's share of civil penalties under PAGA, plaintiff's class representative service award, and applicable federal and state payroll taxes, as approved by the court, were completed. (Castro Decl., ¶¶ 4-8 & 10-11.)

Castro further stated that on June 2, 2025, ILYM issued and mailed settlement award checks to participating class and PAGA members, that 49 of those checks remained uncashed in the total amount of \$22,463.98, and that the deadline for participating class and PAGA members to cash settlement checks was November 29, 2025. (Castro Decl., ¶¶ 12-13.)

On October 6, the court entered a minute order adopting its tentative ruling continuing the final approval hearing to January 26, 2026, as the deadline for participating settlement class members to cash the settlement checks issued by ILYM had not yet passed. Pursuant to that order, the court directed plaintiff to, on or before January 16, 2026, file and serve a supplemental report or declaration regarding the status of ILYM's efforts to finalize the Settlement.

On January 21, 2026, after the deadline prescribed in the court's October 6, 2025, minute order, plaintiff filed a supplemental declaration of Castro which contains the same information appearing in the prior Castro declaration described above. The Castro declaration filed on January 21 additionally states that 47 settlement checks issued by ILYM, in the total amount of \$20,941.53, remained uncashed after the expiration of the November 29, 2025, deadline, and that on May 29, 2026, the necessary paperwork and unclaimed funds will be sent to the California Controller's Unclaimed Property Fund. (Jan. 21, 2026, Castro Dec., ¶¶ 13-14.)

On January 26, after a hearing, the court entered a minute order adopting its tentative ruling as follows:

"The present record reflects that the deadline to cash the settlement checks issued to the participating settlement class members by ILYM expired on November 29, 2025, and that 47 of those settlement checks remain uncashed. Considering the

information appearing in the Castro declaration filed on January 21 and described above, which shows that settlement funds totaling \$20,941.53 from the uncashed settlement checks, and any necessary paperwork, will not be delivered to the California State Controller until May 29, the court will continue the hearing to June 29, 2026. On or before June 15, 2026, plaintiff shall file and serve a supplemental report, which may be submitted in the form of a declaration, regarding the status of ILYM's efforts to deliver the unclaimed or uncashed settlement funds to the California State Controller as described in the Castro declaration and above."

The court continued the final approval hearing to June 29, 2026, and ordered plaintiff to, on or before June 15, file and serve a supplemental report regarding the status of efforts to transmit uncashed or unclaimed settlement funds to the California State Controller, and to otherwise finalize the Settlement.

On June 17, plaintiff late-filed a declaration of Castro stating that on May 29, 2026, all necessary paperwork and unclaimed funds were sent to the California State Controller's unclaimed property fund. (Castro Dec., ¶ 14.)

Analysis:

It appears to the court from the available information and evidence, including the matters set forth in the Castro declarations described above, that the Settlement has in all respects, including as to the mailing of settlement award checks and the delivery of funds from uncashed settlement checks and all necessary paperwork to the California State Controller, been finalized and completed. Therefore, no appearances are required.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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